

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1610
(Representatives Warrey, J. Johnson, Lefor, McLeod, Novak, Richter)
(Senator Lemm)

AN ACT to create and enact a new section to chapter 47-16 of the North Dakota Century Code, relating to prohibited lease provisions in a contract to lease real property.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. A new section to chapter 47-16 of the North Dakota Century Code is created and enacted as follows:

Fee for accepting check or other instrument of payment prohibited.

A landlord may not charge a tenant a fee to accept cash, a check, or a money order for the payment of rent or any other payment required by the landlord under a lease for real property.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1610.

House Vote: Yeas 78 Nays 3 Absent 13

Senate Vote: Yeas 44 Nays 0 Absent 3

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State